

Assam Criminal Law Amendment (Supplementary) Act, 1934

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Assam Criminal Law Amendment (Supplementary) Act, 1934

UNION OF INDIA

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Assam Criminal Law Amendment (Supplementary) Act, 1934

Act 27 of 1934

Published in Gazette 27 on 25 August 1934

Assented to on 25 August 1934

Commenced on 25 August 1934

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Assam Criminal Law Amendment (Supplementary) Act, 1934

Act No. 27 of 1934

[25th August, 1934]

An Act to supplement the Assam Criminal Law Amendment Act, 1934.

Whereas it is expedient to supplement the Assam Criminal Law Amendment Act, 1934 (Assam 3 of 1934);

It is hereby enacted as follows:--

1.

Short title

This Act may be called the Assam Criminal Law Amendment (Supplementary) Act, 1934.

2.

Appeals and confirmations

(1)

Any person convicted on a trial held by Commissioners under the Assam Criminal Law Amendment Act, 1934 (Assam 3 of 1934), may appeal to the High Court of Judicature at Fort William in Bengal, and such appeal shall be disposed of by the said High Court in the manner provided in Chapter XXXI of the Code of Criminal Procedure, 1898 (5 of 1898).

(2)

When the said Commissioners pass a sentence of death, the record of the proceedings before them shall be submitted to the said High Court, and the sentence shall not be executed unless it is confirmed by the High Court which shall exercise in respect of such proceedings all the powers conferred on the High Court by Chapter XXVII of the Code of Criminal Procedure, 1898 (5 of 1898).

3.

Bar of certain legal proceedings

The powers conferred by section 491 of the Code of Criminal Procedure, 1898 (5 of 1898) shall not be exercised in respect of any person arrested, committed to or detained in custody under the Assam Criminal Law Amendment Act, 1934 (Assam 3 of 1934).

4.

Retrospective effect of sections 2 and 3

Section 2 and section 3 shall have effect from the commencement of the Assam Criminal Law Amendment Act, 1934 (Assam 3 of 1934).

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